

HOUSE No. 2344

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey Rosario Turco

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring Safe Harbor exceptions to the MBTA Communities Act.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>1/16/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/23/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/6/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>4/3/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>4/3/2025</i>
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>9/8/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>9/8/2025</i>

HOUSE No. 2344

By Representative Turco of Winthrop, a petition (accompanied by bill, House, No. 2344) of Jeffrey Rosario Turco, David F. DeCoste and Colleen M. Garry for legislation to require safe harbor exceptions to the multi-family zoning as-of-right in certain MBTA communities. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring Safe Harbor exceptions to the MBTA Communities Act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 MGL 40A, Section 3A is amended by addition a new subsection (d):
- 2 Any community which qualifies for any of the safe harbor provisions of M.G.L. 40B,
- 3 shall be exempt from the requirements of this Section 3A.